

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ABDUL RICHARDSON,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER LATOYA
CROOKS, SHIELD NUMBER 10777, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO POLICE SERVICE AREA 6,Defendants.
-----X

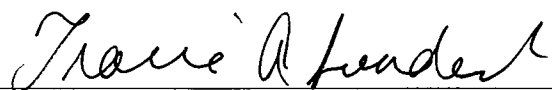
Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
February 12, 2018
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
ABDUL RICHARDSON
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER LATOYA CROOKS,
SHIELD NUMBER 10777,
Police Service Area 6
2770 Frederick Douglass Boulevard
New York, New York 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ABDUL RICHARDSON,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER LATOYA
CROOKS, SHIELD NUMBER 10777, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO POLICE SERVICE AREA 6,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff ABDUL RICHARDSON by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, respectfully alleges as follows:

1. At all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. At all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. At all times hereinafter mentioned Defendant POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, was employed by Defendant CITY OF NEW YORK as a police officer.

4. At all times hereinafter mentioned Defendant POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, acted within the scope of her employment for Defendant CITY OF NEW YORK.

5. At all times hereinafter mentioned Defendant POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, was assigned to Police Service Area 6 (2770 Frederick Douglass Boulevard, New York, New York 10039).

6. At all times hereinafter mentioned Defendant POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

7. At all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were employed by Defendant CITY OF NEW YORK as police officers.

8. At all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 acted within the scope of their employment for Defendant CITY OF NEW YORK.

9. At all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were assigned to Police Service Area 6 (2770 Frederick Douglass Boulevard, New York, New York 10039).

10. At all times hereinafter mentioned Defendant SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of their office as police officers for said county and city.

11. On August 1, 2016, at approximately 10:00 A.M., Plaintiff ABDUL RICHARDSON was walking on Frederick Douglass Boulevard, between West 129th Street and West 130th Street, in the County, City and State of New York, when four unidentified men, at least one of whom was carrying a firearm, attempted to rob Plaintiff. Plaintiff ABDUL RICHARDSON fought with his assailants and, during the struggle, a firearm fell to the ground. Plaintiff ABDUL RICHARDSON's assailants ran off when they heard approaching police sirens. After his assailants ran off, Plaintiff ABDUL RICHARDSON picked up the dropped firearm. When

Plaintiff saw Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 approaching him he placed the firearm on the ground. Plaintiff ABDUL RICHARDSON was attempting to explain what had happened to the approaching police officers when Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 ordered Plaintiff ABDUL RICHARDSON to get on the ground. Plaintiff ABDUL RICHARDSON immediately complied, and continued his attempt to explain what had happened. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 ignored Plaintiff's explanation, and made no attempt to ascertain what had happened. Instead, Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, rear cuffed Plaintiff ABDUL RICHARDSON and searched him while Plaintiff remained on the ground. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff ABDUL RICHARDSON's arrest. During this time, Plaintiff ABDUL RICHARDSON offered no resistance but continued to attempt to explain what had happened. After the search was completed, Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 placed Plaintiff ABDUL RICHARDSON under arrest for Criminal Possession of a Weapon despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. On August 1, 2016, at approximately 10:00 A.M., Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, forcibly, wrongfully and unlawfully arrested Plaintiff ABDUL RICHARDSON.

13. Following his arrest, Plaintiff ABDUL RICHARDSON was transported to Patrol Service Area 6 (2770 Frederick Douglass Boulevard, New York, New York 10039) where his arrest was processed. Later that day, Plaintiff ABDUL RICHARDSON was transported to Manhattan Central Booking (100 Centre Street, New York, New York 10013) for arraignment. Following arraignment Plaintiff was transported to Manhattan Detention Complex (125 White Street, New York, New York 10013) where he remained for approximately 30 days. Thereafter, Plaintiff was transported to Rikers Island where he remained while his charges were adjudicated.

14. On July 1, 2017, all criminal charges (Docket Number 2016NY046204 - Supreme Court of the State of New York - New York County) against Plaintiff ABDUL RICHARDSON were dismissed by Order of the Honorable J. Konviser, J.S.C.

15. On July 24, 2017, within 90 days of the Plaintiff's acquittal of all criminal charges, but more than 30 days prior to the commencement of this action, Plaintiff ABDUL RICHARDSON duly presented, served, and filed a Notice of Claim for malicious prosecution, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

16. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6.

17. On January 15, 2018, Defendant CITY OF NEW YORK held a Municipal Hearing in this matter.

18. This action is commenced within one year and ninety days after the alleged state law cause(s) of action arose.

19. As a result of the foregoing, Plaintiff ABDUL RICHARDSON sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

20. Plaintiff ABDUL RICHARDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

21. At the aforementioned time and place, Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 placed Plaintiff ABDUL RICHARDSON under arrest despite Defendants' knowledge that they lacked probable cause to do so.

22. Plaintiff ABDUL RICHARDSON had not committed any offense and Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

23. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were aware that probable cause did not exist for the arrest and detention of Plaintiff ABDUL RICHARDSON and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff ABDUL RICHARDSON and such actions were committed in bad faith.

24. In all of the wrongful acts above alleged, Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff ABDUL RICHARDSON and such actions were committed in bad faith.

25. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff ABDUL RICHARDSON was deprived of the rights and immunities secured to

him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

26. As a further result of the above-described acts, Plaintiff ABDUL RICHARDSON was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

27. Plaintiff ABDUL RICHARDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. Plaintiff ABDUL RICHARDSON was falsely imprisoned from August 1, 2016, to June 7, 2017, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

29. Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 intended to confine Plaintiff ABDUL RICHARDSON and Plaintiff ABDUL RICHARDSON was conscious of the confinement, and Plaintiff ABDUL RICHARDSON did not consent to the confinement.

30. Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff ABDUL RICHARDSON and damaging Plaintiff ABDUL RICHARDSON in his reputation and depriving him of his liberty.

31. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff ABDUL RICHARDSON suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

32. Plaintiff ABDUL RICHARDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 misrepresented and falsified evidence before the District Attorney.

34. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 did not make a complete and full statement of facts to the District Attorney.

35. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 withheld exculpatory evidence from the District Attorney.

36. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were directly and actively involved in the initiation of criminal proceedings against Plaintiff ABDUL RICHARDSON.

37. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 lacked probable cause to initiate criminal proceedings against Plaintiff ABDUL RICHARDSON.

38. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 acted with malice in initiating criminal proceedings against Plaintiff ABDUL RICHARDSON.

39. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were directly and actively involved in the continuation of criminal proceedings against Plaintiff ABDUL RICHARDSON.

40. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 lacked probable cause to continue criminal proceedings against Plaintiff ABDUL RICHARDSON.

41. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 acted with malice in continuing criminal proceedings Plaintiff ABDUL RICHARDSON.

42. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 misrepresented and falsified evidence throughout all phases of the criminal proceeding.

43. Notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 the criminal proceedings were terminated in Plaintiff ABDUL RICHARDSON's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

44. Plaintiff ABDUL RICHARDSON repeats, reiterates and realleges each and every allegation contained in this complaint.

45. Each and every individual Defendant had an affirmative duty to intervene on Plaintiff ABDUL RICHARDSON's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

46. As a result of the aforementioned conduct of the individual Defendants, Plaintiff ABDUL RICHARDSON's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

47. Plaintiff ABDUL RICHARDSON repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

49. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

50. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff ABDUL RICHARDSON.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ABDUL RICHARDSON as alleged herein.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ABDUL RICHARDSON as alleged herein.

53. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA

6, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff ABDUL RICHARDSON's constitutional rights.

54. All of the foregoing acts by defendants deprived Plaintiff ABDUL RICHARDSON of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

55. Plaintiff ABDUL RICHARDSON repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

56. On or about August 1, 2016, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 commenced a criminal proceeding against Plaintiff ABDUL RICHARDSON and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

57. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff ABDUL RICHARDSON had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

58. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were directly and actively involved in the initiation of criminal proceedings against Plaintiff

ABDUL RICHARDSON.

59. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 lacked probable cause to initiate criminal proceedings against Plaintiff ABDUL RICHARDSON.

60. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were motivated by actual malice in initiating criminal proceedings against Plaintiff ABDUL RICHARDSON

61. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 misrepresented and falsified evidence before the District Attorney.

62. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 did not make a complete and full statement of facts to the District Attorney.

63. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 withheld exculpatory evidence from the District Attorney.

64. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 were directly and actively involved in the continuation of criminal proceedings against Plaintiff ABDUL RICHARDSON.

65. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6 lacked probable cause to continue criminal proceedings against Plaintiff ABDUL RICHARDSON.

66. Defendants POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6

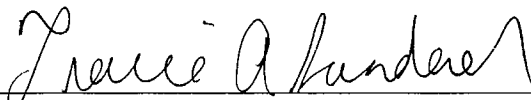
were motivated by actual malice in continuing criminal proceedings against Plaintiff ABDUL RICHARDSON.

70. Notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff ABDUL RICHARDSON's favor.

71. As a result of the foregoing, Plaintiff ABDUL RICHARDSON is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff ABDUL RICHARDSON demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER LATOYA CROOKS, SHIELD NUMBER 10777, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO POLICE SERVICE AREA 6, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
February 12, 2018



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

ABDUL RICHARDSON

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

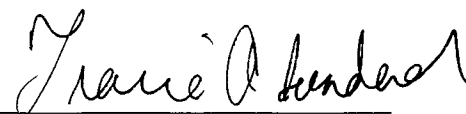
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirrant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
February 12, 2018



TRACIE A. SUNDACK